

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 16

Honorable Vincent I. Parrett, Presiding

191 North First Street, San Jose, CA 95113

Telephone: (408) 882-2270

July 10, 2026

9:00 and 9:01 A.M.

Unauthorized Recording of Court Proceedings will be Punished

ORAL ARGUMENT

If you are contesting the tentative ruling then by 4 PM today you must notify:

- (1) The Court by calling **(408) 808-6856**, and
- (2) The other side by phone or email that you will appear at the hearing to contest the tentative.

If you fail to notify the court and opposing side by 4 PM then no oral argument will be heard and the tentative ruling becomes the final ruling. (C.R.C. 3.1308(a)(1) & Local Rule 8.E.)

APPEARANCES

The Court encourages in-person appearances for all matters.

The Court discourages remote appearances.

The Court forbids phone-only appearances.

If, despite the above clear guidance, you still elect to appear remotely in Department 16 then you must appear by video using our Court's Unicorn Digital Courtroom ("UDC") system. If for whatever reason you do not like using UDC, *then come to D16 in person.*

To use UDC, click or copy and paste this link into your internet browser & scroll to Department 16: https://www.scscourt.org/general_info/ra_teams/video_hearings_teams.shtml
When using UDC you must *separately register for each case* in which you appear remotely. If you find UDC too cumbersome, *then come to D16 in person.*

Proposed Orders filed by counsel after the hearing must include the Judicial Council Form EFS-020 Proposed Order Cover Sheet.

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:01 1	21CV387984	<i>Neela Koneru</i> <i>v.</i> <i>Avenue One Clubhouse, et al.</i>	Order on Compromise of Minor's Claim Before the Court is a Petition filed on June 8, 2026 by Srikanth Koneru (the “Petitioner”), who is the Parent and Guardian ad item of Neela Koneru, a minor, for an Order Approving a Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor (the “Petition”). The Petition is well grounded in the law, well supported by the facts, and reasonable in all respects. The Court finds that all the relief sought is in the best interests of the minor Neela Koneru. Accordingly, the Petition is GRANTED in all respects. As the prevailing party, Petitioner is ORDERED within 10 days of today to prepare and file a Proposed Order Approving a Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor, using Judicial Council Form MC-351, which the Court will then review and sign. SO ORDERED.

9:01 2	23CV426955	Jayden Gu v. Patrick Pei Chang, M.D., et al.	Order on Compromise of Minor's Claim Before the Court is a Petition filed on June 3, 2026 by Xinchu Gu, (the “Petitioner”), who is the Parent and Guardian ad item of Jayden Gu, a minor, for an Order Approving a Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor (the “Petition”). The Petition is well grounded in the law, well supported by the facts, and reasonable in all respects. The Court finds that all the relief sought is in the best interests of the minor Jayden Gu. Accordingly, the Petition is GRANTED in all respects. After this hearing, the Court will sign and file the two Proposed Orders that were prepared and filed with this Petition on June 3, 2026, specifically: 1. Order Approving Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor; and 2. Order Authorizing Deposit of Minor’s Settlement Proceeds Into 529 College Savings Plan. SO ORDERED.
9:01 3			
9:01 4			
9:01 5			

9:00 <u>1</u>	24CV433813	<i>Georgii Kliukovkin</i> <i>v.</i> <i>uDevs Inc., et al.</i>	Order on Defendant's Motion to Strike Portions of Plaintiff's First Amended Complaint See Line 1 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.
9:00 <u>2</u>	24CV444270	<i>Chad Hutson</i> <i>v.</i> <i>Sam Anderson</i>	Order on Defendant's Motion for Summary Judgment or, in the alternative, Summary Adjudication See Line 2 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.
9:00 <u>3</u>	24CV454356	<i>Wells Fargo Bank, N.A.</i> <i>v.</i> <i>Saeed Alampaykar</i>	Order on Plaintiff's Motion to deem the truth of all matters specified in RFAs admitted by Defendant See Line 3 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.
9:00 <u>4</u>	25CV473892	<i>Keep America Safe and Beautiful</i> <i>v.</i> <i>General Printing & Design, Inc., et al.</i>	Order on Plaintiff's Motion to Approve Settlement and enter Judgment under the terms of Proposition 65 Settlement and Consent Judgment See Line 4 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.

9:00 5	25CV474504	<i>Adedayo Abioye</i> <i>v.</i> <i>Abraham Chapa, et al.</i>	Order on: 1. Defendants' Demurrer to Plaintiffs' Complaint & 2. Defendants' Motion to Strike Punitive Damages from Plaintiff's Complaint <i>See Line 5 below for complete tentative ruling on Defendants' Demurrer and Defendants' Motion to Strike.</i> <i>After the hearing, the Court will prepare and file the formal Order.</i>
9:00 6	25CV474504	<i>Adedayo Abioye</i> <i>v.</i> <i>Abraham Chapa, et al.</i>	Order on Defendants' Motion to Strike Punitive Damages from Plaintiff's Complaint <i>See Line 5 below for complete tentative ruling on Defendants' Demurrer and Defendants' Motion to Strike.</i> <i>After the hearing, the Court will prepare and file the formal Order.</i>
9:00 7	25CV474626	<i>Schechinah Pritchard</i> <i>v.</i> <i>Starbucks Corporation, et al.</i>	Order on Defendant's Motion to Strike Punitive Damages from Plaintiff's Complaint <i>See Line 7 below for complete tentative ruling.</i> <i>After the hearing, the Court will prepare and file the formal Order.</i>

9:00 <u>8</u>	25CV477490	<i>Wells Fargo Bank, N.A.</i> <i>v.</i> <i>Phat Tran</i>	Order on Plaintiff's Motion to deem the truth of all matters specified in RFAs admitted by Defendant See Line 8 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.
9:00 <u>9</u>			
9:00 <u>10</u>			
9:00 <u>11</u>			
9:00 <u>12</u>			
9:00 <u>13</u>			
9:00 <u>14</u>			
9:00 <u>15</u>			

Line 1

Case Name: *Georgii Kliukovkin v. uDevs Inc., et al.*

Case No.: 24CV433813

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant uDevs Inc. (“Defendant”) moves to strike portions of Plaintiff’s First Amended Complaint (“FAC”) under Code of Civil Procedure Sections 435 and 436(a), specifically:

- Paragraph 8 in its entirety (FAC at 2:28-3:2) (“At the time Exhibit A was entered into, Defendants knew that they would not perform their obligations thereunder, and that the representations set forth in Exhibit A with respect to their promise to do so were false and fraudulent.”); and
- Paragraph 9 in its entirety (FAC at 3:3-5) (“At the time Plaintiff entered into Exhibits A and B, he did not know that Defendants’ representations concerning their promises were false and fraudulent, and Plaintiff believed them to be true.”).

Notice of Motion to Strike (the “Motion to Strike”) at 2:1-10 (filed: Dec. 5, 2025).

The Motion to Strike is made on the grounds that paragraphs 8 and 9 of the FAC are irrelevant or are improperly alleged as part of Plaintiff’s First Cause of Action for Breach of Contract because (Defendant argues) they relate only to Plaintiff’s Second Cause of Action for Fraud (*rather* than Breach of Contract). *Id.* at 2:11-13.

The Motion to Strike came on for hearing on July 10, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Background

The FAC alleges that on April 9, 2020, the parties entered into a written Income Share Agreement (“the Agreement”) which was latter modified as Addendum No. 1 (“Addendum”). (FAC, ¶ 4; Exs. A, B.) Defendant agreed to assist Plaintiff in obtaining an O-1 Visa (“the Visa”) and Plaintiff agreed to pay a percentage of his future income to Defendant. (FAC, ¶ 5.)

On April 9, 2020, Plaintiff paid Defendant \$2,987 in accordance with the Agreement. (FAC, ¶ 6.) Defendant breached the contract by failing to assist Plaintiff obtaining the Visa. (FAC, ¶ 7.) After waiting four years, Plaintiff notified Defendant that he was rescinding the Agreement and Addendum due to Defendant’s non-performance. (FAC, ¶ 10.) Defendant refuses to restore Plaintiff with the \$2,987 payment. (*Ibid.*)

The FAC, filed on October 21, 2025, asserts these four Causes of Action:

- 1) First Cause of Action: Breach of Contract;
- 2) Second Cause of Action: Fraud;
- 3) Third Cause of Action: Common Count for Money Had and Received; and
- 4) Fourth Cause of Action: Declaratory Relief.

(FAC, ¶¶ 1-23).

On December 5, 2025, Defendant filed this Motion to Strike Paragraphs 8 and 9, which are pleaded within the First Cause of Action of the FAC. Plaintiff opposes the Motion to Strike.

II. Defendant's Motion to Strike

As noted above, Defendant moves to strike Paragraphs 8 and 9 of the FAC in their entirety on the grounds they are irrelevant or improperly alleged as part of Plaintiff's First Cause of Action for Breach of Contract when (Defendant argues) they only relate to Plaintiff's Second Cause of Action for Fraud.

These paragraphs allege:

Paragraph 8: "At the time [the Agreement] was entered into, Defendants knew that they would not perform their obligations thereunder, and that the representations set forth in [the Agreement] with respect to their promise to do so were false and fraudulent."

Paragraph 9: "At the time Plaintiff entered into [the Agreement and Addendum], he did not know that Defendants' representations concerning their promises were false and fraudulent, and Plaintiff believed them to be true."

(Motion to Strike at 2:1-10).

A. Legal Standard on Motion to Strike

A court may strike out any irrelevant, false, or improper matter asserted in a pleading or strike out all or part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (a).) The grounds for a motion to strike must appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice. (Code Civ. Proc., § 437, subd. (a).) In ruling on a motion to strike, a court reads the complaint as a whole, all parts in their context, and assumes the truth of all well-pleaded allegations. (*Clauson v. Superior Ct.* (1998) 67 Cal.App.4th 1253, 1255.)

B. Analysis of the Motion

In a nutshell, Defendant argues that Paragraphs 8 and 9 are improperly pleaded within the First Cause of Action for Breach of Contract because they ought to instead be pleaded within the Second Cause of Action for Fraud. (Memo. in Support of Motion to Strike at 1:11-12.)

The Court finds this Defendant's argument to be nonsense and utterly unsupported by precedent under California law. Plaintiff is the master of his own pleading—*not* Defendant—and the allegations that Plaintiff chose to put in Paragraphs 8 and 9 are neither irrelevant nor improper. While Defendant is free to strenuously disagree with them and challenge them throughout this litigation, Defendant is not entitled to have them struck from the pleadings now.

Defendant's belief that the allegations in Paragraphs 8 and 9 are "antithetical to the contract claim, which alleges a valid and binding contract" (*id.* at p. 1:12-15) is no reason to strike these allegations at the pleading stage. After all, Plaintiff alleges that Defendant *breached* the contract through its failure of performance, and the facts pleaded in Paragraphs 8 and 9 could be relevant to jury's determination of whether Defendant breached the contract or failed to perform. (*See Robinson Helicopter Co., Inc. v. Dana Corp.* (2004) 34 Cal.4th 979, 989-990 ["Tort damages have been permitted in contract cases where . . . the contract was fraudulently induced. . . . [W]hen one party commits a fraud during the contract formation or performance, the injured party may recover in contract and tort."][internal citations and quotations omitted].) Again, Defendant will have the full and fair opportunity throughout this litigation to challenge and rebut those allegations, but Defendant is not entitled to have them struck just because Defendant muses that they are "antithetical."

In his Opposition papers, Plaintiff points out that California law recognizes that fraudulent inducement is a viable theory even in the context of a contract (Opposition at p. 3:6-10). And so it is quite proper for Paragraphs 8 and 9 to allege facts that Defendant induced Plaintiff to enter the contract by making misrepresentations regarding intent to perform and then breached the very contract that Defendant induced Plaintiff to enter. (*id.* at p. 3:12-16). The Court agrees with Plaintiff's reading of California law on this point. So there is nothing *improper* about this pleading.

Moreover, Plaintiff can properly *plead* alternative and even inconsistent theories at the pleading stage (Opposition at p. 4:5-7). While Defendant may not like that, such pleading in the alternative is not improper.

Likewise, the allegations in the First Cause of Action for Breach of Contract are (again, quite properly) incorporated by reference into the Second Cause of Action for Fraud. (FAC, ¶ 11; *see also Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638 ["An action for promissory fraud may lie where a defendant fraudulently induces the plaintiff to enter into a contract. . . . In such cases, the plaintiff's claim does not depend upon whether the defendant's promise is ultimately enforceable as a contract. 'If it is enforceable, the plaintiff has a cause of action in tort as an alternative at least, and

perhaps in some instances in addition to his cause of action on the contract.”].) This is common practice. (See *Signal Hill Aviation Co. v. Stroppe* (1979) 96 Cal.App.3d 627, 638-639.) Again, Plaintiff is correct that modern practice allows a party to plead in the alternative and make inconsistent allegations. (See *Mendoza v. Continental Sales Co.* (2006) 140 Cal.App.4th 1395, 1402.)

As for Defendant’s last-ditch argument to strike these portions of the FAC because (Defendant muses) it might be unable to win its anticipated Summary Adjudication Motion on the First Cause of Action for Breach of Contract because of Paragraphs 8 and 9 (Memo. in Support of Motion to Strike at pp. 4-5), the Court finds that argument to be as unconvincing as it is unfounded as a ground to strike a pleading. As Defendant’s counsel well knows, to prevail on a motion for summary adjudication Defendant need only show that “one or more of the elements of the cause of action” cannot be established *by evidence*. (*Maria D. v. Westec Residential Sec.* (2000) 85 Cal.App.4th 125, 133.) And that does not hinge on what Plaintiff *pleaded* in Paragraphs 8 or 9 of the FAC. So the Court rejects Defendant’s sheer speculation—about what Defendant might or might not be able to achieve on its anticipated Motion for Summary Adjudication—as a ground to strike Paragraphs 8 and 9 of the FAC now.

For all the above reasons, in the broad exercise of its discretion, the Court respectfully *declines* to strike Paragraphs 8 and 9 from the FAC. (See *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1683 [motion to strike should be used cautiously and sparingly].)

Conclusion & Order

Accordingly, Defendant’s Motion to Strike Paragraphs 8 and 9 from the FAC is **DENIED.**

SO ORDERED.

Date: July 10, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 2

Case Name: *Chad Hutson v. Sam Anderson*

Case No.: 24CV444270

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Sam Anderson (“Defendant” or “Mr. Anderson”) moves under Code of Civil Procedure Section 437c for Summary Judgment or, in the alternative, Summary Adjudication on all claims alleged in the Complaint of Plaintiff Chad Hutson (“Plaintiff”) on the grounds that there are no triable issues of material fact, and Plaintiff cannot establish any of the essential elements of his claims. Notice of Motion (the “Motion”) at p. 2.¹ (filed: Feb 4, 2026).

The Motion came on for hearing on July 10, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, including all the evidence and separate statements and authorities submitted by each party, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Factual Allegations

According to Plaintiff’s Complaint, on January 29, 2024, Chad Hutson was assaulted and battered near West Valley Elementary School on his way to his home. Mr. Hutson pulled up his motorcycle behind Mr. Anderson’s BMW, which was stopped in front of a crosswalk blocking the road and traffic. Mr. Hutson honked the horn, but Mr. Anderson did not move his car. Mr. Hutson maneuvered his motorcycle around the BMW and proceeded toward his home. (Complaint ¶ 5)

Mr. Anderson followed Mr. Hutson aggressively. At the intersection of Dalles and Belleville, Mr. Anderson stopped his car, approached Mr. Hutson’s motorcycle, grabbed the handlebars, and began shaking it. Suddenly Mr. Anderson swung at Mr. Hutson connecting with his helmet, kicked him several times, and continued to attack him while on the ground. Mr. Hutson was held down by Mr. Anderson and another driver until police arrived. (Complaint ¶ 5)

Plaintiff initiated this action by filing Plaintiff’s Complaint on July 31, 2024, alleging only two causes of action for:

¹ As this Motion was not filed on pleading papers with line numbers, the Court in this Order cites only to page numbers.

1. First Cause of Action: Assault & Battery;
2. Second Cause of Action: Intentional Infliction of Emotional Distress.

(Complaint ¶¶ 7-15).

II. Legal Standard

The function of a motion for summary judgment or summary adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) Code. Civ. Proc. § 437c, subdivision (c) “requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (*Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119.) “The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings.” (*Juge v. County of Sacramento* (1993) 12 Cal.App.4th 59, 67, citing *FPI Development, Inc. v. Nakashima* (1991) 231 Cal. App. 3d 367, 381-382.)

As to each claim framed by the complaint, the defendant moving for summary judgment must satisfy the initial burden of proof by presenting facts to negate an essential element, or to establish a defense. (Code. Civ. Proc. § 437c(p)(2); *Scalf v. D. B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1520.) Courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (*Dore v. Arnold Worldwide, Inc.* (2006) 39 Cal.4th 384, 389.) Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence that is admissible under the rules of evidence. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 166.)

“On a summary judgment motion, the court must therefore consider what inferences favoring the opposing party a factfinder could reasonably draw from the evidence. While viewing the evidence in this manner, the court must bear in mind that its primary function is to identify issues rather than to determine issues. [Citation.] Only when the inferences are indisputable may the court decide the issues as a matter of law. If the evidence is in conflict, the factual issues must be resolved by trial.” (*Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 839.) Further, “the trial court may not weigh the evidence in the manner of a factfinder to determine whose version is more likely true. [Citation.] Nor may the trial court grant summary judgment based on the court’s evaluation of credibility. [Citation.]” (*Id.* at p. 840.)

III. Request for Judicial Notice

Mr. Anderson requests judicial notice of the following:

- “Court records in case No. 24CV452806, including the complaint filed by Plaintiff alleging that Sunnyvale police officers caused the injuries he claims here. (Motion, p. 8 ¶ 1)

Regarding these court records, Defendant’s Motion for Judicial Notice is **GRANTED IN PART**. Mr. Anderson seeks judicial notice of unspecified court records. Apart from the Complaint filed in this case, Mr. Anderson has not submitted any other court record. Therefore the Court’s ruling is limited to judicially noticing the existence of the Complaint. The Court, however, cannot take judicial notice of the truth of facts or hearsay statements in the complaint. (See, *Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort* (2001) 91 Cal. App. 4th 875, 882; see also *Stormedia, Inc. v. Superior Court* (1999) 20 Cal.4th 449, 456, n. 9, [“When judicial notice is taken of a document ... the truthfulness and proper interpretation of the document are disputable.”].) So the Court takes Judicial Notice of the existence of the Complaint.

- Police Report No. 24-856, Incident No. 240290141

Regarding this Police Report, Defendant’s Request for Judicial Notice is **DENIED**. Neither the police report nor the statements contained therein are subject to judicial notice because such a report is reasonably subject to dispute. (See Evid. Code §452(h); *People v. Jones* (1997) 15 Cal.4th 119, 171, fn. 17 [“we decline to take judicial notice of the truth or accuracy of an entry in a police report, because such a report is reasonably subject to dispute”].)

IV. Analysis of Defendant’s Motion for Summary Judgment or Summary Adjudication

A. First Cause of Action for Assault & Battery

“The essential elements of a cause of action for assault are: (1) defendant acted with intent to cause harmful or offensive contact, or threatened to touch plaintiff in a harmful or offensive manner; (2) plaintiff reasonably believed [he] was about to be touched in a harmful or offensive manner or it reasonably appeared to plaintiff that defendant was about to carry out the threat; (3) plaintiff did not consent to defendant's conduct; (4) plaintiff was harmed; and (5) defendant's conduct was a substantial factor in causing plaintiff's harm.” (*Yun Hee So v. Sook Ja Shin* (2013) 212 Cal.App.4th 652, 668-69.) “The essential elements of a cause of action for battery are: (1) defendant touched plaintiff, or caused plaintiff to be touched, with the intent to harm or offend plaintiff; (2) plaintiff did not consent to the touching; (3) plaintiff was harmed or offended by defendant's conduct; and (4) a reasonable person in plaintiff’s position would have been offended by the touching.” (*Id.* at p. 669.)

Mr. Hutson alleges that on January 29, 2024, he was assaulted and battered by Mr.

Anderson when he passed the West Valley Elementary School on his way home. Allegedly, Mr. Anderson had blocked the traffic, thus forcing Mr. Hutson to maneuver his motorcycle around Mr. Anderson's vehicle. This escalated to a verbal and physical confrontation between the parties. (Complaint ¶ 5)

Mr. Anderson contends (1) he acted in self-defense and (2) Mr. Hutson cannot establish a causal link between his acts of self-defense and his alleged injuries. Mr. Anderson submits his supporting declaration to establish that Mr. Hutson was the aggressor who initiated the confrontation. Mr. Anderson testifies that while he was lawfully present at the West Valley Elementary School to pick up his child, Mr. Hutson drove his motorcycle aggressively around his vehicle, blocked the traffic, refused to move his motorcycle, and prevented him from moving forward. Mr. Hutson initiated a verbal confrontation, struck Mr. Anderson, threatened to kill him and produced a pocket-knife in a threatening manner. Fearing that he would be stabbed, Mr. Anderson used his bare hands to block Mr. Hutson. Upon arrival of Sunnyvale Police Officers, Mr. Hutson was the sole party arrested at the scene. (Anderson Decl. ¶¶ 1-14)

To support lack of causal connection, Mr. Anderson submits a copy of Mr. Hutson's separate complaint against the City of Sunnyvale, in which he alleges that he was injured as a result of police officers' use of force in arresting him for the altercation that ensued with Mr. Anderson on January 29, 2024. (RJN, Ex. B)

Notably, Mr. Hutson does not submit any Opposition papers contesting Mr. Anderson's arguments and Declaration on the issue that there is no evidence that Mr. Anderson caused Mr. Hutson any damages and on the issue that Mr. Anderson acted in self-defense.

To prove self-defense, Mr. Anderson must establish (1) he reasonably believed that Mr. Hutson was going to harm him and (2) he used only the amount of force that was reasonably necessary to protect himself. (See, CACI 1304; *Vaughn v. Jonas* (1948) 31 Cal.2d 586, 600.)

Mr. Anderson's unopposed Declaration sufficiently establishes both elements satisfying Mr. Anderson's burden of proof. The burden thus shifts to Mr. Hutson to present evidence establishing a triable issue of fact with this regard. But Mr. Hutson has not filed an opposition and thus fails to meet his burden.

Accordingly, the Court **GRANTS** Defendant's Motion for Summary Adjudication on the Assault & Battery Cause of Action.

B. Second Cause of Action for Intentional Infliction of Emotional Distress

The elements for a cause of action for intentional infliction of emotional distress are (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiffs

suffering severe or extreme emotional distress; and (3) an actual and proximate causal link between the tortious conduct and the emotional distress. (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050.)

To satisfy the element of extreme and outrageous conduct, defendant's conduct “must be so extreme as to exceed all bounds of that usually tolerated in a civilized society.” (*Moncada v. West Coast Quartz Corp.* (2013) 221 Cal.App.4th 768, 780, quoting *Trerice v. Blue Cross of California* (1989) 209 Cal.App.3d 878, 883.) “[I]t is not enough that the defendant has acted with an intent which is tortious or even criminal, or that he has intended to inflict emotional distress, or even that his conduct has been characterized by 'malice,' or a degree of aggravation which would entitle the plaintiff to punitive damages for another tort.” (*Cochran v. Cochran* (1998) 65 Cal. App.4th 488, 496.) “Liability has been found only where the conduct has been so outrageous in character, and so extreme in degree, as to go beyond all possible bounds of decency, and to be regarded as atrocious, and utterly intolerable in a civilized community.” (*Ibid.*)

After carefully considering the entire record and all the evidence presented, the Court finds and rules that there is no evidence and no triable issue of fact that Mr. Anderson is liable for intentional infliction of emotional distress against Mr. Hutson.

Moreover, the Court finds and rules that Plaintiff's Second Cause of Action for Intentional Infliction of Emotional Distress is premised on Plaintiff's First Cause of Action for Assault & Battery. So if the First Cause of Action fails, so does the Second Cause of Action. Here, as the Court above GRANTED Defendant's Motion for Summary Adjudication in favor of Defendant on the First Cause of Action, the Court likewise GRANTS Summary Adjudication in favor of Defendant on the Second Cause of Action.

For all these reasons, the Court **GRANTS** Defendant's Motion for Summary Adjudication on the Intentional Infliction of Emotional Distress Cause of Action.

V. Conclusion & Order Granting Summary Judgment

As the Court above has **GRANTED** Summary Adjudication in favor of Defendant and against Plaintiff on every Cause of Action in Plaintiff's Complaint, as a matter of logic and law the Court hereby **GRANTS Summary Judgment in favor of Defendant Sam Anderson and against Plaintiff Chad Hutson on all claims in Plaintiff's Complaint.**²

SO ORDERED.

² The Court further **ORDERS** Plaintiff Chad Hutson and Defendant Sam Anderson to appear in person at the July 10, 2026 Hearing at 9:00 AM in Department 16 regarding this ruling.

Date: July 10, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 3

Case Name: *Wells Fargo Bank, N.A. v. Saeed Alampaykar*

Case No.: 24CV454356

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Wells Fargo Bank, N.A. (“Plaintiff”) moves under Code of Civil Procedure Sections 2033.010, 2033.020, 2033.250, 2033.280, and 2033.430 to deem the truth of all matters specified in the Requests for Admissions, Set One, served on September 17, 2025, to be admitted by Defendant Saeed Alampaykar (“Defendant”). Notice of Motion (the “Motion”) at 1:21-24 (filed Dec. 12, 2025).

The Motion came on for hearing on July 10, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Plaintiff served the Requests for Admissions, Set One, on Defendant on September 17, 2025. Declaration of attorney Pearse F. Early In Support of Motion (“Early Decl.”) at ¶ 1 & Exhibit A thereto.

Defendant never responded to the Requests for Admissions, Set One, despite his obligation to respond under Code of Civil Procedure Section 2033.240. Early Decl. at ¶ 2.

Because Defendant failed to respond, Plaintiff now moves for an Order under Code of Civil Procedure Section 2033.280 deeming admitted by Defendant the truth of all matters specified in Plaintiff’s Requests for Admissions, Set One. C.C.P. 2033.280 (b). Plaintiff’s Memorandum of Points & Authorities in Support of Motion at 1:23-2:7.

The Motion is well supported by the law, well supported by the facts set forth in the Early Declaration, and reasonable in all respects.

Moreover, Defendant has failed to oppose the Motion, which the Court views as Defendant conceding the Motion. *D.I. Chadbourne, Inc. v. Super. Ct.* (1964) 60 Cal.2d 723, 728, fn. 4.; California Practice Guide: Civil Procedure Before Trial ¶ 9:105.10, Ch. 9 at pp. 94-95 (failure to file opposition papers to motion is treated “as an admission that the motion is meritorious”) (Weil & Brown, The Rutter Group, 2025 Ed.); *see also* Rule of Court 8.54(c): “A failure to oppose a motion may be deemed a consent to the granting of the motion.” CRC Rule 8.54(c).)

Accordingly, the Court **GRANTS** the Motion in all respects. Specifically, it is hereby **ORDERED that the truth of all matters specified in Plaintiff’s Requests for Admissions, Set One, served on Defendant on September 17, 2025, is deemed admitted by Defendant Saeed Alampaykar.**

SO ORDERED.

Date: July 10, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 4

Case Name: *Keep America Safe and Beautiful v. General Printing & Design, Inc., et al.*

Case No.: 25CV473892

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Keep America Safe and Beautiful (“Plaintiff”) moves under Code of Civil Procedure Section 664.6 and Health and Safety Code Section 25249.7(f) for an Order approving the Settlement and entry of the “[Proposed] Judgment Pursuant to the Terms of Proposition 65 Settlement and Consent Judgment.” Notice of Motion (the “Motion”) at 1:18-25 (filed: Jan. 21, 2026).

The Motion came on for hearing on July 10, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

The parties here have acted in an exemplary manner by efficiently, effectively, and professionally:

- negotiating and entering a Proposition 65 Settlement (the “Settlement”), and
- submitting a proposed Consent Judgment, setting forth the terms and conditions of the Settlement, which provides appropriate remedies and well serves the public interest.

The parties in this Motion ask the Court to approve the Settlement and sign and enter the proposed Consent Judgment.

Also, in connection with this Settlement, the parties have negotiated and agreed that Defendant General Printing & Design, Inc. (“Defendant”) will pay Plaintiff for Plaintiff’s attorneys’ fees and costs in the total amount of \$26,272.33, which the parties ask the Court to find reasonable and approve now.

Moreover, in due compliance with California law, the parties have provided copies and proper notice of the proposed Consent Judgment to the Office of the California Attorney General,³ which has not opposed this Motion. Indeed, no one opposes this Motion.

³ See Affidavit of Compliance with California Code of Regulations, title 11, § 3000 *et seq.* (filed: Jan. 21, 2026, signed under penalty of perjury by attorney Laralei Paras).

The Court commends the parties for devoting substantial time and resources to reach this Settlement that meets all the criteria established by Proposition 65 and well serves the public interest. More specifically, the Court approves this Settlement entered by these private parties in this Proposition 65 enforcement action because the Court finds all the following to be true and well established by the record:

1. The injunctive relief required by the Settlement complies with Proposition 65;
2. The Civil Penalty that the parties agree to in the Settlement is reasonable based on the specific facts and circumstances of this case with reference to each factor enumerated by Health & Safety Code § 25249.7(b)(2);
3. The attorneys' fees and costs that Defendant has agreed to pay Plaintiff for in the total amount of \$26,272.33 are reasonable in all respects, including both the hourly rate and numbers of hours of attorney work sought;⁴ and
4. The Court further finds that all requirements of Code of Civil Procedure Section 1021.5 are met for this award of attorneys' fees, including that the injunctive relief obtained by the Settlement confers significant public benefits justifying this \$26,272.33 award of Plaintiff's attorneys' fees and costs to be paid by Defendant.⁵

Conclusion & Order

Accordingly, the Court **GRANTS** the Motion in all respects. Specifically, the Court **ORDERS**:

1. The Settlement is approved in all respects;
2. The amount of \$26,272.33 for Plaintiff's attorneys' fees and costs is reasonable and will be promptly paid by Defendant;
3. The Court will sign and enter the proposed Consent Judgment today; and
4. The Court retains jurisdiction to enforce the terms of the Settlement and the Consent Judgment under Code of Civil Procedure Section 664.6.

SO ORDERED.

⁴ The amount, hourly rate, and hours sought for this award of attorneys' fees and costs is well supported in detail in the Declaration of attorney Laralei Paras in Support of Motion ("Paras Decl.") at ¶¶ 17-24 (filed: Jan. 21, 2026).

⁵ The fact that the terms and conditions of the Settlement and Consent Judgment confer significant public benefits is well supported in detail in the Paras Declaration, ¶¶ 9-12.

Date: July 10, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 5

Case Name: *Adedayo Abioye v. Abraham Chapa, et al.*

Case No.: 25CV474504

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendants Abraham Chapa and Vortex Industries, LLC (“Defendants”) demur to the Second Cause of Action for Negligent Infliction of Emotional Distress in the Complaint filed by Plaintiff Adedayo Abioye (“Plaintiff”) on the grounds that the Second Cause of Action fails to state facts sufficient to state a cause of action against Defendant under Code of Civil Procedure Section 430.10(e). Notice of Demurrer (the “Demurrer”) at 2:4-9 (filed: Oct. 10, 2025).

In addition, Defendants move under Code of Civil Procedure Section 436 and Civil Code Section 3294 to strike the following portions of the Complaint because they argue Plaintiff improperly seeks to recover punitive damages based on Causes of Action for Negligence for which he has no such right:

1. “For punitive damages in an amount appropriate to punish Defendants and deter others for engaging in similar conduct.” Complaint at 5:5-6;
2. “For punitive damages in an amount appropriate to punish Defendants and deter others for engaging in similar conduct.” Complaint at 5:11-12

Notice of Defendants’ Motion to Strike (the “Motion to Strike”) at 1:26-2:8 (filed: Oct. 10, 2025).

Defendants’ Demurrer and Motion to Strike came on for hearing on July 10, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules in this Order on Demurrer and Motion to Strike as follows.

I. Factual Allegations

According to the Complaint, on June 26, 2025, Plaintiff’s vehicle was struck by Abraham Chapa while driving as an employee in a vehicle for Vortex. At the scene of the collision, Mr. Chapa admitted to being distracted by a biker and did not see Plaintiff’s vehicle. (Complaint ¶¶ 12, 13)

As a result of the collision, Plaintiff’s vehicle was a total loss and he suffered injuries to his neck, back, and head. Plaintiff also suffered emotional and mental distress. Defendants’ insurance company communicated their willingness to compensate Plaintiff for his injuries, but have not done so. (Complaint ¶¶ 15, 17)

Plaintiff initiated this action by filing the Complaint on September 9, 2025, alleging causes of action for negligence and negligent infliction of emotional distress.

II. Legal Standards

“The party against whom complaint or cross-complaint has been filed may object, by demurrer or answer as provided in [Code of Civil Procedure] section 430.30, to the pleading on any one or more of the following grounds: . . . (e) The pleading does not state sufficient facts to constitute cause of action, (f) The pleading is uncertain.” (C.C.P. § 430.10(e) & (f).)

A demurrer may be used by “[t]he party against whom complaint has been filed” to object to the legal sufficiency of the pleading as whole, or to any “cause of action” stated therein, on one or more of the grounds enumerated by statute. (C.C.P. §§ 430.10 & 430.50.)

“A demurrer tests only the legal sufficiency of the pleading. It admits the truth of all material factual allegations in the complaint; the question of plaintiff’s ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court.” (*Committee on Children’s Television, Inc. v. General Foods Corp.* (1983) 35 Cal. 3d 197, 213-214.) In ruling on demurrers, courts may consider matters subject to judicial notice. (*Scott v. JPMorgan Chase Bank, N.A.* (2013) 214 Cal. App. 4th 743, 751.) Evidentiary facts found in exhibits attached to complaint can be considered on demurrer. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.)

Under California law, even where a demurrer is sustained, leave to amend the complaint is routinely granted. “Liberality in permitting amendment is the rule, if fair opportunity to correct any defect has not been given.” (*Angie M. v. Superior Court* (1995) 37 Cal. App. 4th 1217, 1227.) “Unless the complaint shows on its face that it is incapable of amendment, denial of leave to amend constitutes an abuse of discretion, irrespective of whether leave to amend is requested or not.” (*McDonald v. Sup. Ct. (Flintkote Co.)* (1986) 180 Cal. App. 3d 297, 303-304.) That said, to be granted leave to amend where a demurrer is sustained, the California Supreme Court instructs that “the burden is on plaintiff” to “show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading.” *Goodman v. Kennedy* (1976) 18 Cal. 3d 335, 349; *see also Hendy v. Losse* (1991) 54 Cal. 3d 723, 742 (where demurrer is sustained, the burden is on the plaintiff “to demonstrate the manner in which the complaint might be amended” to cure the pleading defect).

Regarding a motion to strike, “[a]ny party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof. . . .” (Code Civ. Proc. § 435.) “The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading; (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc. § 436.) The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice. (Code Civ. Proc. § 437, subd. (a).)

III. In deciding Defendants' Demurrer and Defendants' Motion to Strike now, the Court will consider Plaintiff's Motion to Strike Defendants' Demurrer and Defendants' Motion to Strike now.

In response to Defendants' Demurrer and Motion to Strike, Plaintiff on December 5, 2025 filed Plaintiff's Motion to Strike Defendants' Demurrer and Defendants' Motion to Strike (hereinafter, "Plaintiff's Motion to Strike"). In Plaintiff's Motion to Strike, Plaintiff argues that Defendants' Demurrer and Defendants' Motion to Strike are impermissible, frivolous, and irrelevant. (Notice of Plaintiff's Motion to Strike at 2:3-9). And for whatever reason, on December 23, 2025, Plaintiff refiled Plaintiff's Motion to Strike with no substantive changes.

Plaintiff has filed no other Opposition papers to Defendants' Demurrer and Defendants' Motion to Strike. Nonetheless, as the "nature of a motion is determined by the nature of the relief sought, not by the label attached to it[.]"⁶ the Court will consider Plaintiff's Motion to Strike to be Plaintiff's "Opposition papers" for purposes of resolving Defendants' Demurrer and Defendants' Motion to Strike now.

IV. Judicial Notice

Plaintiff seeks judicial notice of the following:

- Exhibit A - Defendants' Abraham Chapa & Vortex Industries, LLC's Demurrer filed in this case
- Exhibit B - Defendants' Abraham Chapa & Vortex Industries, LLC's Motion to Strike filed in this case
- Exhibit C - Plaintiff Adedayo Abioye's Statements of Damages filed in this case
- Exhibit D - Plaintiff Adedayo Abioye's Proof of Service of Complaint and Statement(s) of Damages filed in this case
- Exhibit E - Meet and Confer Correspondence

As for Exhibits A-D, Plaintiff's Request for Judicial Notice is **GRANTED IN PART** as follows. Pursuant to Evidence Code §§ 452 and 453, the Court may take judicial notice of the existence of judicial opinions and court documents, along with the truth of the results reached - in the documents such as orders, statements of decision, and judgments - but cannot take judicial notice of the truth of hearsay statements in decision or court files, including pleadings, testimony, or statements of fact. (See, *Williams v. Wraxall* (1995) 33 Cal. App. 4th 120, 130, fn. 7, citing *Gilmore v. Superior Court* (1991) 230 Cal. App. 3d 416, 418.) Accordingly, the Court takes Judicial Notice of the existence

⁶ *City & County of S. F. v. Muller* (1960) 177 Cal. App. 2d 600, 603; see also *Eddy v. Sharp* (1988) 199 Cal. App. 3d 858, 863

of Exhibits A-D.

As for Exhibit E, Plaintiff's Request is **DENIED**. These materials (argumentative meet and confer correspondence) are not matters fit for judicial notice since they are reasonably subject to dispute. (See, *Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, 882.)

V. Analysis of Defendants' Demurrer to the Second Cause of Action for Negligent Infliction of Emotional Distress

Defendants contend Plaintiff's second cause of action for negligent infliction of emotional distress is subject to demurrer because (1) it is not an independent tort, and (2) it is duplicative of the first cause of action for negligence. (Demurrer at 7:15-8:11) The Court agrees.

In his Complaint, Plaintiff brings a First Cause of Action for Negligence and a Second Cause of Action for Negligent Infliction of Emotional Distress. But under California law, "[a] claim of negligent infliction of emotional distress is not an independent tort but the tort of negligence to which the traditional elements of duty, breach of duty, causation, and damages apply." (*Wong v. Jing* (2010) 189 Cal.App.4th 1354, 1377.) Emotional distress *damages* are recoverable as a remedy in a negligence cause of action when they result from the breach of a duty owed to the plaintiff. (See, *Levy v. Only Cremations for Pets, Inc.*, (2020) 57 Cal. App. 5th 203, 217.)

Here, both the first cause of action for negligence and the second cause of action for negligent infliction of emotional distress are based on the identical factual allegations regarding the June 26, 2025, motor vehicle accident. Both causes of action incorporate by reference the same statement of facts set forth in the complaint. Both allege that Defendants were negligent and that Plaintiff was harmed as a result of Defendants' negligence. The only distinction Plaintiff attempts to draw is that the first cause of action seeks damages for general harm while the second cause of action seeks damages for serious emotional distress. (Complaint ¶¶ 12-21, Prayer)

This attempted distinction is insufficient under California law. Plaintiff's emotional distress damages are properly recoverable as damages within the First Cause of Action for Negligence. The Complaint itself acknowledges that Plaintiff suffered both physical injuries and mental and emotional distress as a result of the accident. These emotional distress damages are a component of the harm Plaintiff alleges in the negligence cause of action and cannot be separately pleaded as an independent tort.

Plaintiff's Opposition papers⁷ suggest that the two causes of action are not duplicative because he suffered different types of damages, citing his statements of

⁷ *I.e.*, Plaintiff's Motion to Strike Defendants' Demurrer and Defendants' Motion to Strike (filed Dec. 5, 2025, and refiled Dec. 23, 2025), discussed at 4:10-23 *supra*.

damages that allocate \$1,000,000 to physical and pain-and-suffering damages under the negligence claim and \$1,000,000 to emotional distress damages under the negligent infliction of emotional distress claim. This argument misunderstands California pleading requirements. The mere fact that a plaintiff seeks different categories of damage does not transform a single negligence claim into two separate causes of action.

Hence, Plaintiff's Second Cause of Action for Negligence fails at the pleading stage because it is not an independent cause of action under California law. Accordingly, the Court **SUSTAINS** Defendants' Demurrer to the Second Cause of Action for Negligent Infliction of Emotional Distress.

The remaining question is whether the Court should grant leave to amend. Here, because as a matter of California law Negligent Infliction of Emotional Distress (the Second Cause of Action) is not an independent cause of action but rather a type of damages recoverable from the Negligence claim, there are no facts that Plaintiff could plead in an amendment that would save the Second Cause of Action. So as this claim, on its face, is incapable of amendment to remedy this defect as a matter of law, the Court will not grant Plaintiff leave to amend here.

Likewise, for leave to amend to be granted where, as here, a demurrer is sustained, Plaintiff has the burden of showing how he can amend his complaint and *how that amendment will change the legal effect of his pleading*. *Goodman*, 18 Cal. 3d at 349, *supra*. Here, Plaintiff has not met that burden, and indeed *cannot* meet that burden because Negligent Infliction of Emotional Distress is not an independent cause of action under California law.

Accordingly, Defendants' Demurrer to Plaintiff's Second Cause of Action for Negligent Infliction of Emotional is **SUSTAINED WITHOUT LEAVE TO AMEND**.

VI. Analysis of Defendants' Motion to Strike Punitive Damages from the Complaint

Defendants move to strike Plaintiff's prayer in both the First Cause of Action and Second Cause of Action—"For punitive damages in an amount appropriate to punish Defendants and deter others for engaging in similar conduct" (Complaint at 5:5-6 & 5:11-12)—because the Complaint does not allege any intentional conduct that would constitute oppression, fraud, or malice. (Motion to Strike at 4:22-6:8) The Court agrees.

In order to state a *prima facie* claim for punitive damages, a complaint must set forth the elements as stated in the general punitive damage statute, Civil Code section 3294. (*College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 721.) These statutory elements include allegations that the defendant has been guilty of oppression, fraud or malice. (Civ. Code, § 3294, subd. (a).) Malice is defined in the statute as conduct "intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code, § 3294, subd. (c)(1) "Oppression means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's

rights.” (Civ. Code, § 3294, subd. (c)(2).) Fraud is “an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (Civ. Code, § 3294, subd. (c)(3).)

Here, Plaintiff’s allegations describe ordinary negligence: a driver’s momentary inattention resulting in a traffic accident. There are no factual allegations suggesting Defendants acted with malice, oppression or fraud. There are no factual allegations whatever that elevate the conduct alleged beyond simple negligence. Something more than mere negligence or even gross negligence is always required for punitive damages. (See, *Gombos v. Ashe* (1958) 158 Cal. App.2d 517, 527.) “The mere carelessness or ignorance of the defendant does not justify the imposition of punitive damages. . . . Punitive damages are proper only when the tortious conduct rises to levels of extreme indifference to the plaintiff’s rights, a level which decent citizens should not have to tolerate.” (*Lackner v. North* (2006) 135 Cal.App.4th 1188, 1210, internal citations and quotes omitted)

Plaintiff’s Opposition papers⁸ suggest that the basis for punitive damages is Defendants’ alleged failure to compensate him for his injuries and the insurance company’s delay in settlement. However, these post-accident actions do not relate to the conduct that caused the accident itself, which is the basis for the negligence claims. Moreover, allegations that a defendant or its insurer failed to promptly settle a claim or compensate an injured plaintiff do not constitute the type of despicable conduct carried on with willful and conscious disregard of rights that would support punitive damages under Section 3294.

Accordingly, Defendants’ Motion to Strike Plaintiff’s prayer “[f]or punitive damages in an amount appropriate to punish Defendants and deter others for engaging in similar conduct” (Complaint at 5:5-6 & 5:11-12) is **GRANTED**.

VII. Conclusion & Order

Defendants’ Demurrer to Plaintiff’s Second Cause of Action for Negligent Infliction of Emotional is **SUSTAINED WITHOUT LEAVE TO AMEND**.

Defendants’ Motion to Strike Plaintiff’s prayer for punitive damage is **GRANTED**.

Moreover, because in deciding this Order Sustaining Defendants’ Demurrer and Granting Defendants’ Motion to Strike, the Court fully considered but rejected all arguments in Plaintiff’s Motion to Strike Defendants’ Demurrer and Defendants’ Motion to Strike, **the hearing on Plaintiff’s Motion to Strike that is currently on calendar for September 16, 2026 is VACATED as moot.**

⁸ *I.e.*, Plaintiff’s Motion to Strike Defendants’ Demurrer and Defendants’ Motion to Strike (filed Dec. 5, 2025, and refiled Dec. 23, 2025), discussed at 4:10-23 *supra*.

SO ORDERED.

Date: July 10, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 6

Case Name: *Adedayo Abioye v. Abraham Chapa, et al.*

Case No.: 25CV474504

See Line 5 above for complete tentative ruling on Defendants' Demurrer and Defendants' Motion to Strike.

Line 7

Case Name: *Schechinah Pritchard v. Starbucks Corporation, et al.*

Case No.: 25CV474626

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Starbucks Corporation (“Starbucks”) moves under Code of Civil Procedure Sections 435 and 436 to strike the following allegations from Plaintiff’s Complaint against Starbucks:

- Plaintiff’s Request for Punitive Damages (Complaint ¶¶ 37-40, 51-53, Prayer for Relief ¶ D).

Notice of Motion (the “Motion”) at 1:26-2:2 (filed: Dec. 9, 2025).

The Motion is made on the grounds that the language sought to be stricken is “irrelevant, false, or improper” and/or is “not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court” within the meaning of Code of Civil Procedure Section 436, and on the grounds that Plaintiff has not stated fact sufficient to support an award of punitive damages as set forth in Civil Code Section 3294(b), which requires specific facts showing how Starbucks’ officers, directors or managing agents authorized or ratified the conduct of its employees or agents or had advance knowledge of an unfitness of an employee and employed them with a conscious disregard of the rights and safety of others. Motion at 2:3-11.

The Motion came on for hearing on July 10, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Background

In her Complaint filed on September 9, 2025, Plaintiff alleges that on July 27, 2024, she sustained injuries after an employee of Defendant served her coffee through Defendant’s drive-thru window. (Complaint, ¶ 23.) While Defendant’s employee was handing Plaintiff her beverage, the lid dislodged and spilled dangerously hot coffee onto Plaintiff’s lap. (*Ibid.*) Plaintiff further alleges that Defendant’s Safety and Security Manual warned that skin burns at 140 degrees Fahrenheit, yet Defendant’s internal policy was to serve hot coffee to customers at a temperature at or near 190 degrees Fahrenheit. (Complaint, ¶ 22.) Additionally, Plaintiff alleges that Defendant “had been receiving at least 80 complaints per month from customers who reported lid failures, lids popping off, lid leaks, burn injuries, and/or other incidents involving spill exposures.” (Complaint, ¶ 21.)

Plaintiff alleges causes of action for negligence and product liability. On December 9, 2025, Defendant moved to strike Plaintiff's request for punitive damages in paragraphs 37-40 and 51-43 of Plaintiff's Complaint. (Motion, p. 2:3-5.) Plaintiff has opposed the Motion.

Analysis of the Motion to Strike

I. Legal Standard on Motion to Strike

A court may strike out any irrelevant, false, or improper matter asserted in a pleading. (Code Civ. Proc., § 436, subd. (a).) A court may also strike out all or any part of a pleading not drawn or filed in conformity with the laws of the State of California. (Code Civ. Proc., § 436, subd. (b).) The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice. (Code Civ. Proc., § 437, subd. (a).) In ruling on a motion to strike, the court reads the targeted pleading as a whole, all parts in their context, and assumes the truth of all well-pleaded allegations. (See *Turman v. Turning Point of Central California, Inc.* (2010) 191 Cal.App.4th 53, 63 [citing *Clauson v. Super. Ct.* (1998) 67 Cal.App.4th 1253, 1255].) The court's decision to strike the petition pursuant to section 436 is within the broad discretion of the court. (See Code Civ. Proc., § 436 ["The court may . . . strike"].)

II. Motion to Strike Punitive Damages

At the outset, having considered Defendant's accompanying Request for Judicial Notice of Plaintiff's Complaint, the Court GRANTS Defendant's Request for Judicial Notice of the existence of Plaintiff's Complaint. (Evid. Code, § 452, subd. (d).)

Now Defendant moves to strike Plaintiff's request for punitive damages in the Complaint on the grounds that Plaintiff has not stated facts sufficient to show how Defendant's officers, directors or managing agents authorized or ratified the conduct of its employees or agents or had advance knowledge of an unfitness of an employee and employed them with a conscious disregard of the rights and safety of others. (Motion to Strike, p. 2:13-18.)

Civil Code section 3294 subdivision (b) states that an employer cannot be liable for punitive damages for the actions of an employee unless "the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice." (Civ. Code, § 3294, subd. (b).) "With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation." (*Ibid.*) "Corporate ratification in the punitive damages context requires actual knowledge of the conduct and its outrageous nature." (*College Hospital Inc. v. Superior Court* (1994) 8 Cal. 4th 704, 726.) Claims for punitive damages cannot rely on entirely conclusory allegations and must be supported by facts. (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 168 [striking punitive damages request from a

complaint that failed to sufficiently allege corporate defendant's advance knowledge, authorization, or ratification].)

“While punitive damages may be recovered in a products liability case and in a negligence action, in order to justify an award of punitive damages on the basis of a conscious disregard of the safety of others, the plaintiff must establish that the defendant was aware of the *probable* dangerous consequences of its conduct and that it willfully and deliberately failed to avoid those consequences.” (*Hilliard v. A. H. Robins Co.* (1983) 148 Cal.App.3d 374, 395, internal citations omitted, emphasis in original.) Said another way, punitive damages may be awarded in a product liability action if it is shown that the defendant placed a product on the market in conscious disregard of the safety of consumers and others. (*Grimshaw v. Ford Motor Co.* (1981) 119 Cal.App.3d 757, 808; see also *Johnson v. Monsanto Co.* (2020) 52 Cal.App.5th 434, 456 [“[A] plaintiff must show more than negligence to recover punitive damages and instead must show that a defendant willfully and consciously ignored the dangers inherent in a product's design.”].)

Here, Plaintiff alleges enough specific facts that Defendant knew that the temperature of its beverages and their product lids were causing burns and still chose to keep serving drinks that way. (Complaint, ¶ 19.). Specifically, Plaintiff alleges that Defendant's Safety and Security Manual warned that skin burns at 140 degrees Fahrenheit, yet Defendant's internal policy was to serve hot coffee to customers at a temperature at or near 190 degrees Fahrenheit. (Complaint, ¶ 22.) “‘Corporate policy’ is the general principles which guide a corporation, or rules intended to be followed consistently over time in corporate operations. A ‘managing agent’ is one with substantial authority over decisions that set these general principles and rules.” (*Cruz v. Homepage* (2000) 83 Cal.App.4th 160, 167-168.) Hence, Plaintiff has pleaded enough specific facts to support that an officer, director, or managing agent of the Defendant corporation was aware of probable dangerous consequences from serving drinks at a temperature above 140 degrees Fahrenheit but nevertheless instructed employees to serve drinks at or near 190 degrees Fahrenheit. (Complaint, ¶ 22.). Which in turn supports Plaintiff *pleading* punitive damages.

Additionally, Plaintiff alleges that Defendant “had been receiving at least 80 complaints per month from customers who reported lid failures, lids popping off, lid leaks, burn injuries, and/or other incidents involving spill exposures.” (Complaint, ¶ 21.) Plaintiff has thus alleged that Defendant had received complaints and consequently “was aware of the *probable* dangerous consequences” of continuing to serve very hot drinks with potentially faulty lids, and that it deliberately did not take action to avoid those consequences. (*Hilliard v. A. H. Robins Co.*, *supra*, 148 Cal.App.3d at p. 395; see also *Ehrhardt v. Brunswick* (1986) 186 Cal.App.3d 734, 741 [trial court did not err in refusing to submit the issue of punitive damages to the jury because defendant manufacturer was unaware of and never anticipated the failures responsible for plaintiff's injury and there was no evidence that defendant knew of any problems and thereafter refused to redesign the system to eliminate the problems].)

Hence, Plaintiff has alleged that Defendant's corporate policy per internal documents was to serve beverages at temperatures it knew could be dangerous and that

Defendant had received complaints about spill issues. Assuming, as the Court must for the purposes of resolving this Motion, all well-pleaded allegations in the Complaint to be true (*Turman v. Turning Point of Central California, Inc.*, *supra*, 191 Cal.App.4th at p. 63), Plaintiff has sufficiently pleaded that Defendant placed a product on the market in conscious disregard of the safety of consumers and others. (*Grimshaw v. Ford Motor Co.*, *supra*, 119 Cal.App.3d at p. 808.) While Defendant of course may strenuously dispute and challenge those allegations, they are well pleaded and they are enough to support a claim for punitive damages *at the pleading stage*.

Conclusion & Order

Accordingly, at this early stage of the proceedings, the Court **DENIES** Defendant's Motion to Strike punitive damages from the Complaint.

SO ORDERED.

Date: July 10, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 8

Case Name: *Wells Fargo Bank, N.A. v. Phat Tran*

Case No.: 25CV477490

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA**

Plaintiff Wells Fargo Bank, N.A. (“Plaintiff”) moves under Code of Civil Procedure Sections 2033.010, 2033.020, 2033.250, 2033.280, and 2033.430 to deem the truth of all matters specified in the Requests for Admissions, Set One, served on December 4, 2025, to be admitted by Defendant Phat Tran (“Defendant”). Notice of Motion (the “Motion”) at 1:21-24 (filed: Feb. 5, 2026).

The Motion came on for hearing on July 10, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Plaintiff served the Requests for Admissions, Set One, on Defendant on December 4, 2025. Declaration of attorney Pearse F. Early In Support of Motion (“Early Decl.”) at ¶ 1 & Exhibit A thereto.

Defendant never responded to the Requests for Admissions, Set One, despite his obligation to respond under Code of Civil Procedure Section 2033.240. Early Decl. at ¶ 2.

Because Defendant failed to respond, Plaintiff now moves for an Order under Code of Civil Procedure Section 2033.280 deeming admitted by Defendant the truth of all matters specified in Plaintiff’s Requests for Admissions, Set One. C.C.P. 2033.280 (b). Plaintiff’s Memorandum of Points & Authorities in Support of Motion at 1:23-2:7.

The Motion is well supported by the law, well supported by the facts set forth in the Early Declaration, and reasonable in all respects.

Moreover, Defendant has failed to oppose the Motion, which the Court views as Defendant conceding the Motion. *D.I. Chadbourne, Inc. v. Super. Ct.* (1964) 60 Cal.2d 723, 728, fn. 4.; California Practice Guide: Civil Procedure Before Trial ¶ 9:105.10, Ch. 9 at pp. 94-95 (failure to file opposition papers to motion is treated “as an admission that the motion is meritorious”) (Weil & Brown, The Rutter Group, 2025 Ed.); *see also* Rule of Court 8.54(c): “A failure to oppose a motion may be deemed a consent to the granting of the motion.” CRC Rule 8.54(c).)

Accordingly, the Court **GRANTS** the Motion in all respects. Specifically, it is hereby **ORDERED that the truth of all matters specified in Plaintiff’s Requests for Admissions, Set One, served on Defendant on December 4, 2025, is deemed admitted by Defendant Phat Tran.**

SO ORDERED.

Date: July 10, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 9

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